

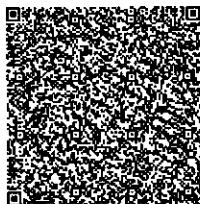
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Certificate No.	: IN-DL93751842727935U
Certificate Issued Date	: 27-Sep-2022 06:26 PM
Account Reference	: IMPACC (IV)/ dl960303/ DELHI/ DL-DLH
Unique Doc. Reference	: SUBIN-DL96030367048429454853U
Purchased by	: KANPUR LUCKNOW EXPRESSWAY PRIVATE LIMITED
Description of Document	: Article 5 General Agreement
Property Description	: Not Applicable
Consideration Price (Rs.)	: 0 (Zero)
First Party	: KANPUR LUCKNOW EXPRESSWAY PRIVATE LIMITED
Second Party	: AXIS BANK LTD
Stamp Duty Paid By	: KANPUR LUCKNOW EXPRESSWAY PRIVATE LIMITED
Stamp Duty Amount(Rs.)	: 200 (Two Hundred only)



Please write or type below this line

THIS STAMP PAPER FORMS INTEGRAL PART AND PARCEL

OF Supplementary to COW Agreement

DATED October 01, 2022

EXECUTED BY Company, Lenders' Representative and Escrow Bank

Company  Limited's Representative

25 Nov 68

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shoolestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
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**SIX LANE UPGRADABLE TO EIGHT LANE PROJECT OF KANPUR LUCKNOW
EXPRESSWAY INCLUDING SPUR FROM 10.980 TO KM 28.500 IN THE STATE OF
UTTAR PRADESH, INDIA**

SUPPLEMENTARY ESCROW AGREEMENT

AMONGST

**KANPUR LUCKNOW EXPRESSWAY PRIVATE LIMITED
(AS COMPANY)**

AND

**THE BANKS AND FINANCIAL INSTITUTIONS SET FORTH IN THE SCHEDULE I
(AS THE LENDER)
(Lenders being represented by AXIS BANK LIMITED acting as the Agent/Lenders'
Representative)**

AND

**AXIS BANK LIMITED
(AS ESCROW BANK)**

AT NEW DELHI

DATED THIS 1st DAY OF OCTOBER, 2022



**ORBIT LAW SERVICES
1201, B-Wing,
Dalamal Towers, 211,
Free Press Journal Marg,
Nariman Point,
Mumbai-400021**

(Handwritten signature and initials)

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SUPPLEMENTARY ESCROW AGREEMENT

THIS SUPPLEMENTARY ESCROW AGREEMENT ("Agreement") is made at New Delhi on the 1st day of October, Two Thousand and Twenty Two by and among:

KANPUR LUCKNOW EXPRESSWAY PRIVATE LIMITED, a company incorporated and validly existing under the provisions of the Companies Act, 2013 with a corporate identity number U45309DL2022PTC396477 having its registered office at Cabin No. 4, NBCC Plaza, Tower II, 4th Floor, Pushp Vihar, Sector-V, Saket, New Delhi- 110017 in the State of New Delhi India (hereinafter referred to as the "**Company**", which expression shall, unless it be repugnant to the subject or context thereof, include its successors and permitted assigns) of the **FIRST PART**;

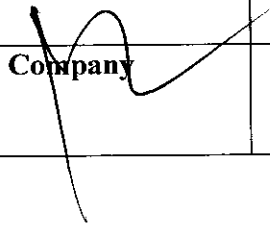
AND

THE BANKS AND FINANCIAL INSTITUTIONS SET FORTH IN PART A of the SCHEDULE I (from whom the Borrower shall avail financial assistance as set forth in Schedule I), hereinafter collectively referred to as the "**Lenders**" or the "**Senior Lenders**" and individually as "**Lender**" or "**Senior Lender**", which expression shall, unless it be repugnant to the subject or context thereof, be deemed to mean and include all or any one or more of them as the context may require or admit, their respective successors and also any other banks or financial institutions to which the rights and/ or obligations (in part or in full) of all or any one or more of the aforementioned Lenders are assigned, novated and/ or transferred) the Lenders being represented by **Axis Bank Limited** acting as the **Agent/ Lenders' Representative** for and on behalf of the Lenders of the **SECOND PART**;

AND

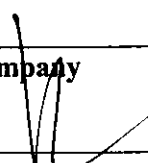
AXIS BANK LIMITED, a company incorporated under the provisions of the Companies Act, 1956 (I of 1956) and a company within the meaning of the Companies Act, 2013 having its corporate identification number (CIN) as L65110GJ1993PLC020769 and a banking company within the meaning of the Banking Regulation Act, 1949 and having its registered office at Trishul, Third Floor, Opp. Samartheswar Temple, Law Garden, Ellisbridge, Ahmedabad 380 006, Gujarat, and corporate office at, Axis House, Tower 1, 4th Floor, Sector 12B, Noida Expressway, Noida 201304, in the State of Uttar Pradesh, India and having Branch at Shop No. 1, 3 to 16, Anupam Plaza, Block No. 51, Sanjay Place, Agra- 282002, in the state of Uttar Pradesh, India (hereinafter referred to as the "**Escrow Bank**" which expression shall, unless repugnant to the context or meaning thereof, include its successors and substitutes) of the **THIRD PART**.

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 Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

W H E R E A S:

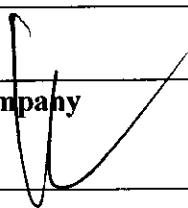
- A. The National Highways Authority of India ("NHAI" or "Authority") - an authority established under the National Highways Authority of India Act, 1998 ("1998 Act"), has granted to the Borrower a concession for the Concession Period (as defined in the Concession Agreement) by way of exclusive right, license and authority for, the Six lane upgradable to Eight lane Project of Kanpur Lucknow Expressway including spur from Km 10.980 to Km 28.500 in the state of Uttar Pradesh under Bharatmala Pariyojana (Package -1) ("Project") on design, build, operate and transfer basis (the "DBOT Annuity" or "Hybrid Annuity") (hereinafter referred to as the "Project"), in accordance with the terms and conditions contained in the concession agreement dated May 12, 2022 entered into between the Authority and the Borrower ("Concession Agreement").
- B. In order to implement the Project, the Borrower has approached the Lenders for financial assistance to enable it to part finance the Project Cost (as defined in Article I of the Facility Agreement) and the Lenders have agreed to make available to the Borrower rupee term Facility of an aggregate principal amount not exceeding **Rs.779.75 Crores (Rupees Seven Hundred and Seventy Nine Crores Seventy Five Lakhs only)** ("Rupee Term Loan") with the sub-limits in the form of (i) bank guarantee facility to the extent of Rs. 155.43 Crores (Rupees One Hundred Fifty Five Crores and Forty Three Lakhs only) ("Bank Guarantee Facility"); or (ii) short term loan to the extent of Rs. 141.30 Crores (Rupees One Hundred Forty One Crores and Thirty Lakhs only) ("Short Term Loan") (collectively "Facility"), as set out against its name in **Part B of Schedule I** hereunder and subject to the right of the Lenders to bring in other lenders to participate in the Facility, on the terms and conditions of the Facility agreement entered / to be entered into, *inter alia*, by the Borrower, Lenders, the Agent and the Security Trustee (hereinafter referred to as "Facility Agreement").
- C. One of the terms and conditions of the Facility Agreement and the Concession Agreement is that the Company shall open and establish the Escrow Account with the Escrow Bank to set out the structure, operational mechanism and other details of various retention accounts.
- D. Authority, the Company, the Agent and the Escrow Bank have accordingly entered/to be entered into an escrow agreement (the "Escrow Agreement") for the purpose of establishing the Escrow Account with Axis Bank Limited at its

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

Branch Shop No. 1, 3 to 16, Anupam Plaza, Block No. 51, Sanjay Place, Agra-282002, in the state of Uttar Pradesh, India (the "Escrow Bank").

- E. In terms of the Escrow Agreement, the Escrow Bank and the Company shall agree in consultation with the Lenders' Representative on the detailed mandates, terms and conditions and operating procedures for the Escrow Account.

NOW THEREFORE, in order to provide for the detailed mandate and the terms and conditions for operating the Escrow Account, the Escrow Bank, the Company and the Lenders' Representative have agreed to enter into this Agreement.

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

ARTICLE – I

INCORPORATION BY REFERENCE AND DEFINITIONS

1.1 INCORPORATION BY REFERENCE

The terms, conditions and provisions of the Escrow Agreement are incorporated herein by reference and made a part hereof as if such terms, conditions and provisions were fully set forth herein. This Agreement and the Escrow Agreement shall be viewed as and shall constitute one agreement governing the terms and conditions with respect to the structure, operational mechanism and other details of various retention accounts. This Agreement is and shall be supplemental to the Escrow Agreement and the Financing Documents. Nothing herein contained shall or shall be deemed to limit or prejudicially affect the rights and benefits created under the Escrow Agreement. In the event of any inconsistency between the terms and conditions of the Escrow Agreement and the terms and conditions or procedures contained herein, the terms and conditions of the Escrow Agreement shall prevail. Further in the event of any inconsistency between the terms and conditions of Article 2.9 of this Agreement and **Authorised Investments** (as defined under Sr. No. 8 of Schedule I) of the Facility Agreement and the terms and conditions or procedures contained herein, the terms and conditions of this Agreement shall prevail.

1.2 DEFINITIONS

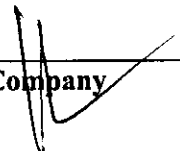
Each term used herein and not otherwise defined shall have the definition assigned to such term in the Escrow Agreement or the Financing Documents or the Concession Agreement, as the case may be. Unless the context otherwise requires, the following terms shall have the following meanings:

“**Agent(s)**” shall mean either the Agent or the Security Trustee or the Escrow Bank or all of them as the context may require, including their respective successors, replacements & substitutes.

“**Annuity Payment**” shall have the meaning given to such term in the Article 23.6.2 of the Concession Agreement.

“**Annuity Payment Date**” shall have the meaning given to such term in Article 23.6.2 of the Concession Agreement.

“**Appointed Date**” shall mean the date as declared by the Authority as per the Concession Agreement.

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

“**Auditor**” shall mean the statutory auditors of the Borrower appointed from year to year in accordance with the Act.

“**Authorised Investments**” shall have the meaning assigned to it under the Facility Agreement and more particularly listed in the **Schedule II** hereto, of the surplus funds available as per the terms of the Escrow Agreement.

“**Authorised Signatory**” shall mean any person duly authorised by the board of directors of the Company to provide instructions/certificates hereunder.

“**Bid Project Cost**” shall have the meaning as specified in the Concession Agreement.”

“**Budget**” shall have meaning assigned to it under the Facility Agreement.

“**Cash Sweep Account**” shall mean an account in the name of the Borrower designated as such and established with the Escrow Bank into which such Cash Sweep Amount will have to be transferred on the Cash Sweep Test Date as the same may be required for Mandatory Prepayment of the Facility.

“**Cash Sweep Amount**” shall mean 50% (fifty percent) of the Surplus Amount after making payments and provisions as per the Base Case Business Plan and after appropriation as per waterfall mechanism mentioned under this Agreement after each Annuity Payment on the Cash Sweep Test Date to be utilised towards the Mandatory Prepayment of the Facility in inverse order of maturity thereby reducing the last instalment of the Amortisation Schedule, on a proportionate basis to the Lenders.

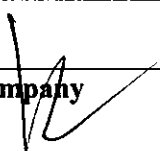
“**Cash Sweep Test Date**” shall mean 7th (seventh) Business Day following the receipt of each Annuity Payment, and thereafter until the Final Settlement Date.

“**Commercial Operation Date**” or “**COD**” shall have the meaning ascribed to it under the Concession Agreement.

“**Construction Budget**” shall have meaning assigned to it under the Facility Agreement and the same shall be submitted by the Company to Escrow Bank.

“**Concession Period**” shall have the meaning assigned to it under the Concession Agreement.

“**Construction Expenses**” shall mean aggregate of any payment required to be paid by the Company to the EPC Contractor as may be specified in the

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

Construction Budget to meet the Project Cost and subject to ceiling given under the Base Case Business Plan and all the expenditure incurred or to be incurred, as certified by the financial officer as being necessary for implementation of the Project including but not limited to the fees and expenses payable to the Agents, consultants and advisors for and/or in connection with performance of their respective services in accordance with the related agreements and/or the appointment letters including the expenses related to insurance policies, the reimbursement of the expenses on completion of the Punch List items incurred by NHA and the penalty, if any, payable to NHA by the Company in case the Punch List items are not completed within the stipulated time during the Construction Period and subject to the and subject to ceiling given under the Base Case Business Plan.

"Contested in Good Faith" shall mean, with respect to the payment of Taxes or any other claims or liabilities by any Person, the Company has contested such payment of Taxes, other claims or liabilities as may be required under the Applicable Law before such courts/tribunals/forums having jurisdiction in respect of such subject matters and shall create the reserve as may be required/deposited in accordance with the Applicable Law, subject to the provisions of the Escrow Agreement.

"Debt Service" shall have the meaning ascribed to it under the Concession Agreement.

"Debt Service Reserve" or "DSR" shall have the meaning assigned to it under the Facility Agreement.

"Debt Service Reserve Account" or "Debt Service Reserve Sub-Account" shall mean sub-account opened /to be opened pursuant to this Agreement.

"Default" shall mean any event, circumstance, act, omission or condition which is or which amounts to non-compliance of any of the obligations under this Agreement or any other Transaction Agreement and which with the giving of notice, making of a determination, lapse of time, or any of them, or the fulfillment of any other requirement provided for in this Agreement or any other Transaction Agreement would become an Event of Default.

"Distribution Date" shall mean each date for re-payment of installment of principal or payment of interest or commission or both stipulated under the Facility Agreement which shall also be the dates of distribution of amounts out of the Retention Accounts and includes each date on which proceeds of any security

		
 Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

upon realisation, Insurance Proceeds, compensation amount received pursuant to the Concession Agreement or otherwise are distributed.

"Distribution Account" shall mean an account in the name of the Borrower designated as such and established with the Escrow Bank into which an amount equivalent to the dividend declared by the Company and other monies payable forming part of the Restricted Payments will be deposited by the Escrow Bank, for the purpose of making the Restricted Payments.

"Enforcement Action" shall mean exercise by the Lenders or any of them of any right available or conferred under or pursuant to any Financing Document including the acceleration of any of the Facility, any action under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 and/or Insolvency and Bankruptcy Code, 2016 and/or initiation of legal proceedings by virtue of any other legal provisions before any court or tribunal for realisation of any Security by sale or otherwise for recovery of all or any of the Obligations owed by the Borrower to the Lenders or any of them and shall also include any preparatory action pertaining thereto.

"Equity" shall have the meaning ascribed to it under the Concession Agreement.

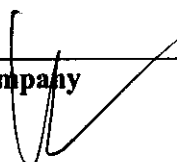
"Escrow Account(s)" mean the account or accounts including sub-accounts established by the Company with the Escrow Bank pursuant to the Escrow Agreement and this Agreement.

"Facility" shall mean the term Facility agreed to be provided by the Lenders under the Facility Agreement for financing part of the Project Cost.

"Financial Year" shall mean the accounting year of the Company commencing each year on April 1 and ending on March 31 of the succeeding year or such other period adopted by the Company as its accounting year with the prior written approval of the Lenders.

"Insurance Proceeds" means all proceeds of insurance with respect to the Project payable to or received by the Company under and all claims arising out of any Insurance Contract in effect and held by or for the benefit of the Company.

"Interest Receipts" means all proceeds of interest payable by NHAI to the Company in accordance with Clause 23.6.4 of the Concession Agreement.

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

“Investment Income” means any interest, dividends or other income arising from or in respect of the Authorised Investment.

“Investment Proceeds” means any net proceeds received by the Escrow Bank upon disposal or realisation or any sum received by the Escrow Bank upon maturity, in respect of the Authorized Investment, but excluding all Investment Income.

“Lender” shall mean the persons set out in **Schedule I** of this agreement and shall including the New Lender(s) and shall mean to include the successor(s) in office and assigns, as the context may admit or require.

“Lenders Independent Engineer” shall have meaning assigned in the Facility Agreement.

“Major Maintenance Reserve” or **“MMR”** shall mean the reserve created/to be created out of the cash flows of the Project as per Base Case Business Plan in accordance with Schedule XIV of the Facility Agreement, to be utilised solely for the purpose of making payments to meet the periodic major repairs, replacement and maintenance costs as per the Base Case Business Plan.

“Major Maintenance Cost” shall mean any sum incurred or to be incurred for Maintenance Requirement as per the Maintenance Program as per the Base Case Business Plan in accordance with the Concession Agreement excluding O&M Expenses.

“Mandatory Prepayment” shall have meaning assigned to it under Section 2.9.2 of the Facility Agreement.

“Mobilisation Advance” shall have the meaning assigned to it in Clause 23.8 of the Concession Agreement.

“Monthly Cash Transfer Date” shall mean last day of each Month, or if the last day is not a Business Day, the immediately preceding Business Day and/or such other date as may be advised by the Company and/or the Agent, as the case may be.

“NHAI” and/or **“Authority”** shall mean the National Highways Authority of India, a statutory body constituted under the provisions of the National Highways Authority of India Act, 1988 and includes its administrators, successors and assigns.

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

"NHAI Funding" shall mean the funds to be received by the Borrower from NHAI during the Construction Period, in accordance with the provisions of the Concession Agreement, for part financing the Project Cost.

"Notice of Debt Service" shall have the meaning ascribed to in Clause 2.12 hereof.

"Obligations" shall mean the Borrower's obligation to pay, repay or reimburse, as the case may be, the Facility, interest, additional interest, premium on prepayment, all costs, charges and expenses, indemnities and other monies owing by, and all other present and future obligations and liabilities of the Borrower to the Lenders under the Facility Agreement and the Financing Documents, all costs, charges and expenses including but not limited to outstanding remuneration of Security Trustee/ Agent and the costs, legal expenses and costs of preserving the securities and/or enforcement thereof including but not limited payment of stamp duty, insurance premium, statutory levies incurred by the Lenders/Agent/Security Trustee/Escrow Bank; in the event of any proceeding for the collection or enforcement of the Obligations, the expenses of creation, release, holding, preparing for sale or lease, selling or otherwise disposing of or realising the Security, all costs and charges incurred by the Lenders in case of any proceedings initiated under the Insolvency and Bankruptcy Code 2016, or of any exercise by the Lenders of the rights under the Financing Documents and/or Security Documents or other documents thereto executed by the Borrower or any other person.

"O&M" shall have the meaning assigned to it under the Concession Agreement.

"O&M Expenses" shall have meaning assigned in Concession Agreement.

"Operational Budget" shall have meaning assigned to it under the Facility Agreement and the same shall be submitted by the Company to Escrow Bank.

"Operational Period" shall have meaning assigned to it under the Concession Agreement.

"O&M Receipts" shall have the meaning ascribed to the term O&M Payments in the Concession Agreement.

"Person" means any individual, corporation, a partnership, association or trust or any other entity or organisation, including any government or political subdivision or any agency or instrumentality thereof.

		
 Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

"Punch List" shall have the meaning ascribed to it in the Concession Agreement.

"Quarter" means each 3 (three) months period commencing on January 1, April 1, July 1 and October 1.

"Restricted Payments" shall have the meaning assigned to it under the Facility Agreement.

"Retention Accounts" shall mean collectively the respective Sub-Accounts opened/to be opened under this Agreement.

"Sub-Accounts" shall mean various accounts to be opened with the Escrow Bank pursuant to the Escrow Agreement and/or supplementary escrow agreement into which the monies would be credited from the Escrow Account for meeting various payment and reserve maintenance requirements in terms thereof.

"Security Trustee" shall mean Axis Trustee Services Limited.

"Subordinate Debt" shall have the meaning assigned to it under the Concession Agreement.

"Surplus Amount" shall mean at any point of time, the cash amount available with the Borrower in the Escrow Account after meeting requirements in accordance with the Order of Priority, as set out in this Agreement.

"Tax" shall have the meaning assigned to it under the Facility Agreement.

"Written Instructions" shall mean the written instructions issued by the Company and/or the Agent (on the basis of instruction received from Lender), as the case may be, to the Escrow Bank, instructing the Escrow Bank to withdraw a specified amount from the deposit accounts of the Escrow Accounts and deposit the same in specified account(s). The written instructions shall specify the purpose for which the said amounts would be utilised.

"Working Capital Reserve" shall mean 6 (six) months interest payment obligation of the Borrower from the COD till receipt of first Annuity Payment and such reserve shall be maintained as part of the Project Cost in accordance with the provisions clause 3.1 (t) of the Schedule IV of the Facility Agreement over and above DSRA.

		
 Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

ARTICLE - II

THE ESCROW BANK'S DUTIES

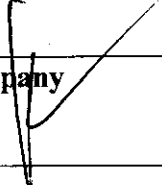
2.1 DECLARATION OF TRUST VESTING AND CONTROL OF THE ESCROW ACCOUNT

- (i) The Company has settled the trust with the Escrow Bank in accordance with the terms and conditions of the Escrow Agreement.
- (ii) The Escrow Bank hereby agrees that amounts deposited in the Escrow Account from time to time shall be held in trust, received and applied as provided for in the Escrow Agreement and shall be subject to the obligations set forth herein. No Person (including without limitation, any Person entitled to receive any payment hereunder) other than the Lenders, NHAI and the Company shall have any rights hereunder, as the beneficiaries of or as third party beneficiaries under the Escrow Agreement.

2.2 ESTABLISHMENT OF ESCROW ACCOUNTS

- (i) The Escrow Bank shall establish the Escrow Account in the name of the Company at Axis Bank Limited having its branch office at Shop No. 1, 3 to 16, Anupam Plaza, Block No. 51, Sanjay Place, Agra- 282002, in the state of Uttar Pradesh, India in accordance with the Escrow Agreement. It being the understanding and agreement of the Parties hereto that, except as may be expressly provided otherwise herein, all accounts and sub-accounts now or in the future maintained hereunder shall be located only in the aforesaid branch for the entire duration of the Escrow Agreement or at such other locations, as may be agreed by the Parties. In order to facilitate the day-to-day operations of the Company, the Escrow Bank shall open such of the sub-accounts (**Retention Accounts**) as described in this Clause 2.2 or as may be determined in consultation with the Company and the Agent acting on behalf of all the Lender(s).
- (ii) The Escrow Account shall have the following deposit and withdrawal Sub-Accounts until the Final Settlement Date:
 1. Taxes Payable Sub-Account;
 2. Construction Expenses Sub-Account;
 3. O&M Expenses Sub-Account;
 4. NHAI O&M Expenses Sub-Account;
 5. NHAI Payments Sub-Account;
 6. Debt Service Sub-Account;
 7. NHAI Damages Payments Sub-Account;
 8. Subordinate Debt Sub-Account;

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Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

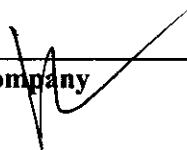
9. Working Capital Reserve Sub-Account;
10. Debt Service Reserve Sub-Account;
11. Major Maintenance Reserve Sub-Account;
12. Additional O&M Expenses Sub-Account
13. Surplus Sub-Account (including Cash Sweep Account and Distribution Account);
14. Termination Proceeds Sub-Account; and
15. Enforcement Proceeds Sub-Account.

2.3 DEPOSITS IN THE ESCROW ACCOUNT:

(A) Deposits into the Escrow Accounts:

The Company shall pay or cause to be paid into the Escrow Account, immediately on receipt, any monies received by the Company from any source whatsoever, as whether received by the Company or by any other person and shall ensure that such amounts are either paid directly into the Escrow Account or are deposited/ transferred into the Escrow Account. The Company shall deposit into the Escrow Account until the Final Settlement Date, without limitation, the following:

- (a) **Equity:** All present and future subscription monies received by the Company from the Sponsor or the Promoter, as the case may be, or any other person in relation to any subscription for any equity shares and/or any other securities to be issued by the Company.
- (b) **Disbursements:** The proceeds of the disbursements of the Facility under the Facility Agreement during the Construction Period.
- (c) **Annuity Collection:** The collection of the Annuity Payment including the O & M Receipts, Interest Receipts and Bonus, if any, from NHAI shall be deposited into the Escrow Account with the Escrow Bank immediately on the Annuity Payment Date and not later than the succeeding Business Day. The Company shall take all necessary and appropriate steps to ensure prompt deposit at all times into the Escrow Account. Till deposit into the Escrow Account by the Company/its employees/agents, the amount of the Annuity Payment or Bonus so remaining to be deposited shall be held by the Company or caused to be held on behalf of the Company in trust for the benefit of the Escrow Bank and the Lenders, free from any lien on the same.

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

- (d) **Proceeds:** NHAI Funding from Authority including the Mobilization Advance etc., all the Insurance Proceeds, monies due or to become due to the Company under the Transaction Agreements, all the proceeds received from the Sponsor or the Promoter, as the case may be, under various undertaking including but not limited to the monies brought in by the Promoter or the Sponsor for meeting Working Capital Reserve and Debt Service Reserves, and damages/ penalties/ liquidated damages under any Transaction Agreement, Termination Payments from NHAI, other than the Equity.
- (e) **Retention Account Transfer:** All amounts required or permitted to be transferred to the Escrow Account from any other Retention Account in accordance with the terms of this Agreement.
- (f) **Investment Income:** Investment Income from the investments made from the proceeds of the Retention Accounts, save to the extent that the Company is allowed to reinvest such Investment Income in the Authorised Investment.
- (g) any other amounts (not being amounts that are required to be paid into any other Retention Account in terms of this Agreement).

The Escrow Bank shall transmit to the relevant Retention Account or other account as may be indicated by the Agent (on the basis of approval from Lenders) or the Company, as the case may be, any amount transferred or distributed by the Escrow Bank in error or by mistake (for whatever reason) promptly upon written notice from the Agent or the Company, as the case may be, without any set off, defense or counterclaim.

(B) Payments out of the Escrow Account

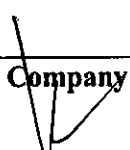
Save as expressly otherwise set out in this Agreement, the Escrow Bank shall during the Concession Period, on the Monthly Cash Transfer Date, subject to the compliance of the relevant applicable provision(s), if any, of Clause 2.6 of this Agreement, permit withdrawal / make transfers from out of the funds available in the Escrow Account only for the following purposes and in the following order of priority ("**Order of Priority**") into respective Sub-Accounts and the Company may not otherwise withdraw any amount from the Escrow Account:

- (a) **Taxes Payable Sub-Account:** An amount equivalent to any tax, levy, duty, charge, impost, fee or other amounts payable to any Governmental Authority which may be imposed or levied or assessed by any

	(M)	(W)
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

Governmental Authority on the Company in connection with the Project, as falling due for payment to be transferred by the Escrow Bank from the Escrow Account into the Taxes Payable Sub-Account for utilization by the Company to make payment of all such taxes on the date as may be advised by the Company.

- (b) **Construction Expenses Sub-Account:** the payment due towards Construction Expenses as specified in the Construction Budget and subject to ceiling given under the Base Case Business Plan and to conditions set forth in the Financing Documents as falling due for payment to be transferred by the Escrow Bank from the Escrow Account into the Construction Expenses Sub-Account to enable the Company to meet the Project Cost on the date as may be advised by the Company.
- (c) **O&M Expenses Sub-Account:** The payment required for meeting the O&M Expenses and reimbursement of expenses of the agents as specified in the Operational Budget and subject to ceiling given under the Base Case Business Plan, and falling due for payment to be transferred by the Escrow Bank from the Escrow Account into O&M Expenses Sub-Account to enable the Company to meet such expenses on the date as may be advised by the Company.
- (d) **NHAI O&M Expenses Sub-Account:** The amounts as may be required for payment of any O&M Expenses and other cost and expenses incurred by NHAI under the Concession Agreement, as specified in the Operational Budget and certified by the NHAI as due and payable to NHAI, and falling due for payment to be transferred by the Escrow Bank from the Escrow Account into NHAI O&M Expenses Sub-Account to enable the Company to make such payment to NHAI on the date as may be advised by the Company and/or NHAI, as the case may be.
- (e) **NHAI Payments Sub-Account:** The amounts as may be required to be paid to NHAI under the Concession Agreement, as specified in the Approved Budget and falling due for payment to be transferred by the Escrow Bank from the Escrow Account into NHAI Payments Sub-Account to enable the Company to make such payment to NHAI on the date as may be advised by the Company and/or NHAI, as the case may be.
- (f) **Debt Service Sub-Account:** The amounts specified in the Approved Budget as required for meeting Debt Service to be transferred by the Escrow Bank from the Escrow Account into the Debt Service Sub-

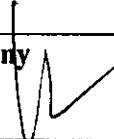
		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

Account to enable the Company to meet the Debt Service requirement on Distribution Date.

- (g) **NHAI Damages Payment Sub-Account:** The amounts as may be required for payment of any damages/ penalties/ by the Company to NHAI under the Concession Agreement, as specified in the Approved Budget, to be transferred by the Escrow Bank from the Escrow Account into the NHAI Damages Payments Sub-Account to enable the Company to make such payments to NHAI on the date as may be advised by the Company and/or NHAI, as the case may be.
- (h) **Subordinate Debt Sub-Account:** The amounts specified in the Budget as required for meeting the Subordinate Debt of the Lenders, as per the Financing Documents, if any, to be transferred by the Escrow Bank from the Escrow Account into the Subordinate Debt Sub-Account to enable the Company to meet the Subordinate Debt requirement on the date as may be advised by the Company.
- (i) **Working Capital Reserve Sub-Account:** An amount equivalent to 6 (six) months interest servicing to the Lender at the time of the COD for maintaining the Working Capital Reserve, to be transferred by the Escrow Bank from the Escrow Account into Working Capital Reserve Sub-Account and such reserve shall be utilized to fund the Debt Service Sub-Account to ensure that the Debt Service requirement is available in the Debt Service Sub-Account on the Monthly Cash Transfer Date till the receipt of the first Annuity Payment and between 2 Annuity Payment dates or in the event of insufficiency of the funds in the Escrow Account.

Provided that the Working Capital Reserve Sub-Account shall be replenished by the Company upon receipt of Annuity Payment from the Authority during Operational Period on the Annuity Payment Date.

- (j) **Debt Service Reserve Sub-Account:** Over and above the Working Capital Reserve, amount required for the payment of interest and repayment of installments of principal, commission and other financing charges for meeting the Debt Service obligations for the immediately forthcoming 2 (two) quarters and payable to the Lenders, during the Operational Period and subject to ceiling given under the Base Case Business Plan, to be transferred by the Escrow Bank from the Escrow Account into Debt Service Reserve Sub-Account and such reserve shall be utilized as envisaged in the Base Case Business Plan to fund the Debt

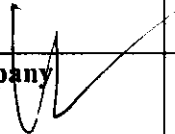
		
Company 	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

Service Sub-Account to ensure that the Debt Service requirement is available in the Debt Service Sub-Account on the Monthly Cash Transfer Date or in the event of insufficiency of the funds in the Escrow Account.

Provided that the Debt Service Reserve Sub-Account shall be replenished by the Company at the interval of every six months to coincide with the Annuity Payment Date or by Sponsor from its own resources in case of insufficiency of funds in the Escrow Account and such additional funds brought in by the Sponsor shall remain in the Escrow Account till the Receivables, of the Borrower is sufficient to replace the same with surplus fund of the Borrower after meeting all obligations under this Agreement.

Provided further that one-time opening DSRA shall be created by the Promoter from its own resources, on or before date of the COD.

- (k) **Major Maintenance Reserves Sub-Account:** An amount required for meeting the cost of periodical major repair or maintenance of the Project as approved by the Agent and subject to ceiling given under the Base Case Business Plan shall be transferred by the Escrow Bank from the Escrow Account into Major Maintenance Reserves Sub-Account on the Monthly Cash Transfer Date to enable the Company to meet the Major Maintenance Cost in accordance with the Operation Budget. Such MMR shall be transferred to the O&M Expenses Sub-Account on the date as may be advised by the Company for meeting the Major Maintenance Cost.
- (l) **Additional O&M Expenses Sub-Account:** The payment required for meeting the additional O&M Expenses over and above Base Case Plan as approved by Lenders Agent, and falling due for payment to be transferred by the Escrow Bank from the Escrow Account into Additional O&M Expenses Sub-Account to enable the Company to meet such expenses on the date as may be advised by the Company.
- (m) **Surplus Sub-Account:**
 - (i) firstly, into the Cash Sweep Account : an amount equivalent to Cash Sweep Amount on Cash Sweep Test Date, shall be deposited by the Escrow Bank from the Surplus Sub-Account into the Cash Sweep Account for the purpose of prepayment of the Facility in inverse order of maturity on a proportionate basis to the Lenders,
 - (ii) secondly, into the Distribution Account: an amount equivalent to the dividend declared by the Company and other monies payable

		
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forming part of the Restricted Payments shall be deposited by the Escrow Bank, from the Surplus Sub-Account into the Distribution Account for the purpose of making the Restricted Payments.

- (iii) The amounts in the Surplus Sub-account that are not transferred to the Cash Sweep Account and/or Distribution Account as set forth hereinabove, such amounts shall be transferred by the Escrow Bank to the Escrow Account and applied in the Order of Priority and/or invest in the Permitted Investment, as the case may be..

2.4 TERMINATION PROCEEDS SUB-ACCOUNT

All the proceeds received by the Company after the termination of the Concession Agreement including the payments received from NHAI on termination and the balances standing to the credit of all the other Retention Accounts shall be deposited into Termination Proceeds Sub-Account, by the Company.

2.5 ENFORCEMENT PROCEEDS SUB-ACCOUNT

(i) All the proceeds of any Enforcement Action; (ii) all the proceeds received by the Company after the notification of the Enforcement Action decision by the Agent to the Escrow Bank; and (iii) balances standing to the credit of all other Retention Accounts at the time of notification of the Enforcement Action decision by the Agent, shall be deposited into Enforcement Proceed Sub-Account in accordance with the instructions of the Agent.

2.6 WITHDRAWALS FROM THE ESCROW ACCOUNT

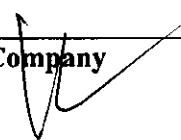
- (i) Subject to the provisions of Clause 2.7 below:

- (a) The Escrow Bank, upon receiving the relevant Written Instructions from the Authorised Signatory of the Company in accordance with the Budget as may be approved / certified by the Agent, withdraw from the Escrow Account on Monthly Cash Transfer Date and place the amount so withdrawn, in the specified withdrawal accounts of the Escrow Account. The Agent shall provide the Escrow Bank with the drawdown schedule, which may be revised or modified, from time to time, under notification to the Escrow Bank by the Agent. The amounts withdrawn from the respective Retention Accounts shall be utilised only as per the drawdown schedule (in respect of the Construction Period) and in accordance with the Budget and as contained in this Agreement. The Agent shall, for every year in advance provide to the Escrow Bank the Budget for making payments out of the respective Retention Accounts to meet all the expenses/payments/investments in terms of the Budget. Any

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Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

changes or amendments in the Budget shall be approved by the Lender.

- (b) A certification by the Auditor as and when submitted during the Construction Period and on an annual basis during the Operational Period, in relation to all withdrawals from the various Sub-Accounts of the Escrow Account shall relieve the Agent of its obligations to the other Lenders in respect of verifying the use of funds by the Company.
- (ii) The Escrow Bank is authorised to make investments, at the Company's request as duly approved by the Agent, in respect of the balances available in all the Retention Accounts in any one or more of the Authorised Investments.
- (iii) The amount specified, by the board of directors of the Company, for the purposes of distribution as dividend among the shareholders of the Company in accordance with the Facility Agreement, shall be deposited by the Escrow Bank into the Surplus Sub-Account for distribution of dividend amongst the shareholders in accordance with the instructions of the Agent.
- (iv) The amount required to be payable by the Company from any of the Retention Accounts and not paid and/or not utilized as determined shall be transferred by the Escrow Bank to the Escrow Account and/or to the Authorised Investments Sub-Account from the respective Retention Accounts, as the case may be.
- (v) In the event no specific directions or guidelines being available in the Budget as to appropriation or application of the amounts in any of the Retention Accounts, the Escrow Bank shall act only according to the Written Instructions of the Agent.
- (vi) The Escrow Bank shall provide cheque book facility or such other withdrawal facility to the Company for the purpose of making payments from the Taxes Payable Sub-Account, Construction Expenses Sub-Account and O&M Expenses Sub-Account, subject to the approval of the Agent and in accordance with the provisions of this Agreement.
- (vii) The Escrow Bank shall transmit to the relevant Retention Account or other account as may be indicated by the Agent or the Company, as the

		
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case may be, any amount transferred or distributed by the Escrow Bank in error or mistake (for whatever reason) promptly upon written notice from the Agent or the Company, as the case may be, without any set off, defense or counterclaim.

2.7 OVERRIDING PROVISION

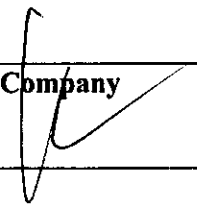
In the event of (i) issuance of notice for termination of the Concession Agreement; or (ii) notification by the Agent of the initiation of steps by any of the Lender(s) for Enforcement Action, notwithstanding anything to the contrary contained in Clauses 2.2 and 2.3 above or any other provisions hereof, the Escrow Bank shall deposit all the earnings, receivables and proceeds of the Company or the Company's assets or the securities including the balances standing to the credit of any of the other Retention Accounts into the Termination Proceeds Sub-Account and Enforcement Proceeds Sub-Account respectively upon instructions of the Agent. The amounts so deposited in the Termination Proceeds Sub-Account and Enforcement Proceeds Sub-Account shall be withdrawn and appropriated/applied in conformity with the provisions of Clause 4.2 of the Escrow Agreement, against and in accordance with the instructions to be given, in writing, by the Agent.

2.8 DUTY OF THE ESCROW BANK TO NOTIFY DEPOSITS AND WITHDRAWALS

The Escrow Bank on or before the 10th (tenth) day of each Quarter shall notify the Company, the Agent and the Lenders of (i) the amounts deposited in and withdrawn from the Retention Accounts and each of the Sub-Accounts thereof, during the preceding Quarter or during such other period; (ii) the Authorised Investments made and proceeds realised therefrom during the preceding Quarter or during such other period; (iii) the aggregate balances of the Retention Accounts and the balance of each Sub-Account thereof, during the preceding Quarter or during such other period; and (iv) such other information as the Company, the Agent or any of the Lenders may reasonably request.

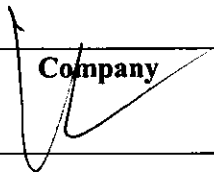
2.9 AUTHORISED INVESTMENTS

- (i) Except as otherwise provided herein, the Company shall instruct the Escrow Bank by way of a certificate (containing specific instructions) signed by the Authorised Signatory from time to time to invest the amounts then deposited in any Escrow Account (and not otherwise then due and payable to the Lender) in the Authorised Investments and where such Authorised Investments are made, the Company by delivery of a certificate containing specific instructions in accordance with paragraph (ii) of this clause may thereafter instruct the Escrow Bank to realise the same (to the

		
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extent that the same are not self-realising). Such Authorised Investments shall be made in terms of Clause 2.9 (vi) of this Agreement.

- (ii) All instructions given by the Company pursuant to paragraph (i) shall be signed by the Authorised Signatory and shall be acted upon within reasonable time. Upon the realisation of any investment made pursuant to this sub clause, the Escrow Bank shall credit to the relevant Retention Account (the moneys which were utilised to purchase the relevant Authorised Investment) the proceeds of such realisation and shall deposit to the Escrow Account, any interest or other amounts received in respect of that Authorised Investment.
- (iii) Any such Authorised Investment shall be made in the name of the Company. However, Authorised Investments shall be lien marked in favour of the Escrow Bank and shall be deemed to be the amounts to the credit of the Retention Accounts while the same remain in existence. The Escrow Bank shall hold on behalf of the Company any Authorised Investment document arising in respect of any Authorised Investment. On expiry of every Quarter, the Escrow Bank shall send to the Agent and the Security Trustee a confirmation and receipts of the Authorised Investment documents and realisations therefrom. The Company is obliged to deliver all the Authorised Investment documents along with the requisite authorisation in favour of the Escrow Bank to realise the Authorised Investments immediately on the receipt of the same by the Company and inform the Lenders accordingly.
- (iv) Except as otherwise set forth herein, the Escrow Bank shall not be responsible for monitoring the performance of any Authorised Investment or for any loss in value thereto unless such loss arises as a consequence of its/the agent's fraud, wilful misconduct or negligence.
- (v) On and after the occurrence of an Event of Default under the Financing Documents, the Agent may instruct the Escrow Bank to liquidate any investments and to transfer the proceeds to the Debt Service Sub-Account, in accordance of the terms of the Escrow Agreement.
- (vi) Any action under this Clause 2.9 may be taken by the Escrow Bank only on the specific instructions to that effect by the Company and the Escrow Bank shall not be responsible for the result of such action. The Company is required to deliver to the Agent, a schedule of the Authorised Investments,

		
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if any, in respect of each Retention Account in such detail as the Agent may require.

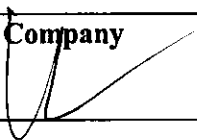
2.10 TRANSFER OF FUNDS

- (i) On receipt of intimation from the Company regarding final settlement of payments towards Construction Expenses or any other payment required to be made under Construction Fund Sub-Account, the Escrow Bank shall close the Construction Expenses Sub-Account and transfer the amounts, if any, standing to the credit of such account to the Escrow Account.
- (ii) The Company shall ensure that no cheques and/or negotiable instruments outstanding for payment from Construction Fund Sub-Account so that no cheques and/or negotiable instruments is not dishonoured for the closure of Construction Fund Sub-Account.

2.11 NOTICE OF DEBT SERVICE

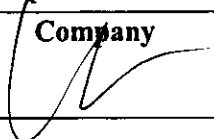
- (i) Commencing with the date that is 15 (fifteen) days prior to the first Distribution Date and prior to each Distribution Date, Company or the Agent or the Lenders as the case may be, shall notify the Escrow Bank, the amounts due and payable to each of them in accordance with the Facility Agreement as on the Distribution Date and/or any relevant date towards:
 1. Costs, charges and expenses;
 2. Amount of additional interest/penal interest/liquidated damages, if any;
 3. Amount of interest payment; and
 4. Amount of principal repayment.

The aforesaid Notices of Debt Service shall be issued by Company or the Agent or the Lender, as the case may be, as part of their normal invoicing procedure of the amount of each item of Obligations which is due to such Lenders as applicable during the succeeding Distribution Date or at the Lender' option, any such other period, the date or dates (as the case may be) on which each such item is due, the payee authorised to receive payment, address, telephone and facsimile number, the method of payment and account numbers and locations of banks where such payments are to be made. If an interest rate is not yet determinable for any Quarter or other period as the case may be, the amounts in respect of the Obligations referred to in this Article II shall be calculated initially by assuming that the interest rate for any such period will be the same as the most recent prevalent

		
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interest rate for the last preceding Distribution Date for which an interest rate has been determined, but the concerned Lenders may thereafter provide the accurate interest rate and shall be entitled to payment hereunder in accordance with such rate on the next succeeding Distribution Date. In the event that any Lenders fails to submit to the Escrow Bank, a Notice of Debt Service for any Distribution Date 15 (fifteen) days prior to the commencement of such period, the Escrow Bank shall promptly notify the failure to such Lender, the Company and the Agent of such failure and such Lenders shall thereafter promptly submit to the Escrow Bank such Notice of Debt Service under advice to the Agent. In the event that after such reasonable efforts the Escrow Bank is unable to ascertain such information from such Lenders or the Company, the Escrow Bank shall pay Debt Service payable to such Lenders as specified in such Lender's/ Agent's Notice of Debt Service most recently received by the Escrow Bank. Notwithstanding any of the foregoing, in the event any Lenders/ Agent fails to submit a Notice of Debt Service or submits a Notice of Debt Service that is inaccurate, such failure shall not impair such Lender's right to receive payments of Debt Service or other amounts hereunder, under the applicable Financing Document or otherwise and such Lenders/ Agent may at any time submit the applicable Notice of Debt Service or corrected Notice of Debt Service, as the case may be.

- (ii) Notwithstanding anything to the contrary contained herein, it is understood and agreed that the Notice of Debt Service is intended to serve as a means of notifying the Escrow Bank when and where to make payments of Debt Service and shall not modify, as between the Company and the Lenders the obligations to pay Debt Service in accordance with the applicable Financing Document.
- (iii) The Escrow Bank shall verify the Notices of Debt Service and comply with the priority of appropriation detailed in Clause 2.3 so that the respective amounts details are available prior to the Distribution Date and the Escrow Bank shall remit on the Distribution Date the amounts to the Lenders in full, if the balance in the Debt Service Sub-Account so permit and monies are available. In the event of a shortfall in money balances available in the Escrow Account for payment of Debt Service the amounts available in the Debt Service Reserve Sub-Account shall be utilised in full in so far as payment to the Lenders are concerned. However, in the event of a continuing shortfall, after exhaustion of all amounts available under the Debt Service Reserve then from out of the balance amount as is available,

		
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the payments due to the Lenders shall be computed pro-rata on the Distribution Date in the following order of priority:

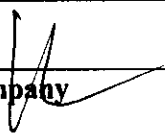
1. Costs, charges and expenses;
2. Amount of additional interest/penal interest/liquidated damages if any;
3. Amount of interest payment; and
4. Amount of principal re-payment;

It is expressly agreed and recorded that all the amounts of each of the Lenders which are overdue and outstanding to be paid on a previous Distribution Date, shall be cleared first and the remaining balances shall be utilised for distribution on the succeeding Distribution Dates.

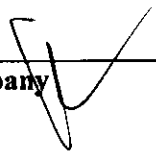
- (iv) In the event of any shortfall to the Lenders still persisting beyond a period of 6 (six) months, the Escrow Bank shall forthwith notify the Agent and all the Lender(s). The Agent shall immediately thereafter fix up a joint meeting of the Lenders before the expiry of 15 (fifteen) days from the receipt of the Escrow Bank's notice, to discuss the further course of action to be initiated against the Company.
- (v) If the Escrow Bank is replaced, pursuant to the Escrow Agreement, such replaced Escrow Bank shall transfer to the account opened in the name of the Company with the successor Escrow Bank any amount standing to the credit of the Escrow Account maintained by the Escrow Bank (together with all accrued interest and/or profit thereon).

2.12 Limitation of liability

- (i) The Escrow Bank shall not have any responsibility in relation to:
 - a) any failure or delay by the Borrower (or any commissioner, director, officer, employee or agent of the Borrower) in performing its obligations under this Agreement or any Financing Document;
 - b) the authorisation, execution, legality, validity, enforceability, effectiveness, genuineness or sufficiency of this Agreement or any other Financing Document;
 - c) the accuracy of any representation, warranty or statement made in or in connection with this Agreement or any Financing Document;
 - d) the collectability of any sum payable under this Agreement or any Financing Document;

		
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- e) taking any steps to ascertain whether the Borrower is in breach of any of its obligations under this Agreement or any Financing Document, or pursuant to any notice delivered in accordance with the Financing Documents, or to perform any act or thing as a consequence of any such breach save as expressly provided in this Agreement;
 - f) accounting for any sum received by it by way of fees or reimbursement of expenses in connection with this Agreement or for any benefit received by it arising out of any present or future banking relationship with the Borrower;
 - g) effecting or procuring registration of or otherwise protecting or perfecting the Security created under or pursuant to the Security Documents, over the Escrow Account;
- (ii) The Escrow Bank shall have only those duties, obligations and responsibilities expressly referred to in this Agreement and no duties, obligations or responsibilities whatsoever shall be inferred or implied against the Escrow Bank.
- (iii) The Escrow Bank may rely upon and shall not be liable for acting or refraining from acting upon any order, judgment, certification, demand, written notice, instruction or request furnished to it under this Agreement by the Borrower without being required to determine the authenticity or the correctness of any fact stated in such document or the propriety or validity of the service of such document. The Escrow Bank may act in conclusive reliance upon any instrument or signature believed by it by the Borrower to be genuine and may assume that any person purporting to give receipt, instruction or advice, make any statement, or execute any document in connection with the provisions of this Agreement has been duly authorized to do so. The Escrow Bank shall be under no duty to inquire into or investigate the validity, accuracy or content of any such document furnished by the Borrower.
- (iv) For the avoidance of doubt and for no fault attributable to the Escrow Bank, the Escrow Bank shall not be required to expend or risk any of its own funds or otherwise incur any liability, financial or otherwise, in the performance of any of its duties under this Agreement.
- (v) Notwithstanding any provision to the contrary and save and except for the terms and conditions of this Agreement read with the Escrow Agreement, the Escrow Bank shall not be bound by the provisions of any other

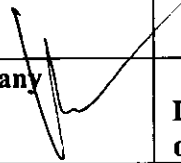
		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

agreement or arrangement amongst the other Parties to this Agreement to which the Escrow Bank is not a party.

- (vi) The Escrow Bank shall have no liability to any of the parties for any indirect or consequential loss or damage that any may claim to have suffered or incurred by reason of this arrangement or any transaction or service contemplated by the provisions of this Agreement unless caused by the verifiable gross negligence or misconduct (as determined by court of law) of the Escrow Bank or any of its employees or agents. In no event shall the Escrow Bank be liable for losses or delays caused by any circumstances beyond the control of the Escrow Bank due to which the Escrow Bank is prevented from performing its obligations under this Agreement, including, but not limited to, acts of God, orders or restrictions of any governmental authorities, war or warlike conditions, hostilities, sanctions, mobilisations, blockades, embargoes, detentions, revolutions, riots, looting, strikes, earthquakes, fires or accidents. failure of communication or agenting systems (collectively, "Force Majeure").

2.13 DISCLAIMERS

- (i) The Parties (other than the Escrow Bank) agree that the Escrow Bank shall not be liable to any person for acting in good faith in the performance of its duties herein contained, so long as the Escrow Bank shall have acted as per the provisions of this Agreement. No implied duties shall be read into the escrow arrangement herein contained against the Escrow Bank, and the Escrow Bank shall not be bound to act in any manner not expressly provided herein.
- (ii) The Escrow Bank shall be fully protected in acting and relying upon the instructions signed by the authorized signatories of the Company, Agent and other parties as listed in the communication by them to the Escrow Bank in this behalf from time to time. The Escrow Bank shall act as per signature of duly authorized person by the respective Parties available with him on his record. Other than as provided in this Agreement, the Escrow Bank shall be entitled to assume that all instructions received by it from the Agent and other parties are in accordance with the Transaction Agreements save and except the Escrow Agreement and this Agreement.
- (iii) Each of the Company and the Agent hereby agrees and undertakes for itself that all the instruction required to be given by it under this Agreement shall be clear unambiguous and non-conflicting. In the event

		
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that any instructions received by the Escrow Bank are in the opinion of the Escrow Bank doubtful or which conflict with any of the provisions of this Agreement, the Escrow Bank shall be entitled to hold the amount lying in Escrow Account and/or the Retention Accounts until it receives clear and unequivocal instructions. However, the Escrow Bank shall immediately, but not later than 1 (one) Business Day, notify its doubts and/ or the reasons for the conflict to Company or the Agent, as the case may be, with any of the provisions of this Agreement and or the Escrow Agreement or as the case may be with the Budget and/or Approved Budget as the case may be, to enable the Parties to remove any such doubt or conflict.

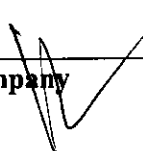
- (iv) The Parties further agree that, except as provided under this Agreement, the Escrow Bank shall not be required to make any decision under this Agreement and shall be fully protected while carrying out the instructions given to Escrow Bank in accordance with and in terms of this Agreement and the Escrow Agreement.
- (v) The Escrow Bank shall not be liable to do or abstain from performing its duties and obligations under this Agreement in the event of there being no specific direction or guidelines being available as to appropriation or application of the amounts lying in any of the Escrow Account and the Retention Accounts and in case of absence of any instructions from the Company or the Agent in that behalf.

2.14 STEP IN RIGHTS

Notwithstanding anything to the contrary contained in this Agreement, the parties hereto expressly agree and acknowledge that NHAI and the Lenders' Representative, in its sole discretion, shall have the right to step into this Agreement, in accordance with the provisions of the Concession Agreement under clause 5.2.4 in substitution of the Borrower, in the event of termination or suspension, as defined in the Concession Agreement. Further, it is clarified that in case both the Authority and Lenders' Representative decide to exercise their right to step-in, the Authority shall have the sole right to step into the Project Documents.

2.15 NHAI PROVISIONS FOR INTERPRETATION:

- (i) Notwithstanding anything to the contrary contained in any of the Financing Documents, in case of any inconsistency between the provisions of the Concession Agreement, the provisions in the Concession Agreement shall prevail over such inconsistent provisions as

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

contained in any of the Financing Documents, to the extent of such inconsistency;

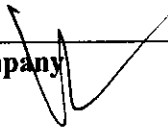
- (ii) Notwithstanding anything contained in any of Financing Documents, each of the parties recognises the provisions contained in the clauses 5.2, 5.3, 7.1(k), 7.1(n) and Article 34 of the Concession Agreement; and
- (iii) Notwithstanding anything to the contrary contained in any of the Financing Documents including Supplementary Escrow Agreement pursuant to 8.1 of the Escrow Agreement, the provision of the Escrow Agreement shall have an overriding effect over the provisions of the Financing Documents and in the event of any conflict/inconsistency between the provisions contained in the Escrow Agreement and the provisions contained in the Financing Documents, the provisions contained in the Escrow Agreement shall prevail.

2.16 PAYMENTS

All payments under the Financing Documents (including but not limited to any payments towards impost, costs and charges, reimbursement of expenses to any Party, and appropriation of payments to the Lenders/ Agent/ Security Trustee shall, at all times, be subject to the waterfall of priority of payments as set out in Article 25.3 of the Concession Agreement and Article 4.1 of the Escrow Agreement.

2.17 GOVERNING LAW AND JURISDICTION

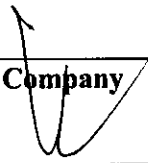
All the Parties to this Agreement agree that any legal action or proceedings arising out of this Agreement shall be brought in the courts or tribunals at New Delhi in India and irrevocably submit themselves to the non-exclusive jurisdiction of such court or tribunal. The Security Trustee and/or the Lenders and/or Lenders' Representative may, however, in their absolute discretion commence any legal action or proceedings arising out of this Agreement in any other court, tribunal or other appropriate forum, and all the other parties to this Agreement hereby consent to that jurisdiction. Notwithstanding anything contained herein, the courts and tribunals at New Delhi shall have exclusive jurisdiction to try and entertain any dispute where Authority is impleaded as Party.

		
Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

**SCHEDULE I
PARTICULARS OF LENDERS AND FACILITY**

**AS PER SCHEDULE II OF THE FACILITY AGREEMENT, AS AMENDED
FROM TIME TO TIME.**

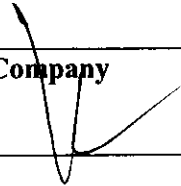
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Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

SCHEDULE II

AUTHORISED INVESTMENTS

1. Government of India Securities;
2. Rupee negotiable certificates of deposit, debt instruments or similar instruments denominated in Rupees, which is for the time being rated at least AAA or equivalent short term money market ratings by a reputed external credit rating agency as recognized by RBI from time to time;
3. Interest bearing Deposits with scheduled commercial banks / financial institutions acceptable to the Lenders.
4. Money market mutual funds rated AAA or equivalent market ratings.
5. Fixed Deposits with Scheduled Commercial Banks except with Co- operative Banks acceptable to Lenders.
6. Any other that may be mutually agreed to between the Lenders and the Borrower from time to time.

		
 Company	Axis Bank Limited as Lenders' Representative on behalf of the Lender	Axis Bank Limited as Escrow Bank

IN WITNESS WHEREOF each of the Parties hereto have caused these presents executed and delivered through the hands of their authorised officials and/or constituted attorney on the date and place first hereinabove written:

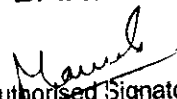
THE COMMON SEAL OF KANPUR LUCKNOW EXPRESSWAYPRIVATE LIMITED has pursuant to the Resolutions of its Board of Directors passed in that behalf on 22nd day of September 2022 hereunto been affixed in the presence of Mr. Devendra Kumar Maheshwari, its Director who has signed these presents in token thereof.



SIGNED AND DELIVERED BY AXIS BANK LIMITED representing the Lenders, in its capacity as the **Lenders Representative**, the within named Lenders Representative by the hand of Ms. Manisha Gupta, its Deputy Vice President and authorized official.

For AXIS BANK LTD.

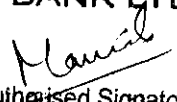



Authorized Signatory,
Corporate Banking Branch New Delhi

SIGNED AND DELIVERED by within named **ESCROW BANK, AXIS BANK LIMITED** by the hand of Ms. Manisha Gupta, its Deputy Vice President and authorized official.

For AXIS BANK LTD.




Authorized Signatory
Corporate Banking Branch New Delhi